

which would presumably fall under the breach of contract and statutory violations alleged in the first and second causes of action. FAC, ¶¶12-14. However, as these previous causes of action have not been sufficiently plead, this cause of action does not sufficiently allege an unlawful practice.

The Demurrer as to this cause of action is SUSTAINED.

Fourth Cause of Action (INJUNCTIVE RELIEF/ TEMPORARY RESTRAINING ORDER)

Defendant contends that this cause of action does not state a cause of action because neither injunctive relief nor a temporary restraining order are standalone causes of action.

Although the fourth cause of action is labeled “Injunctive Relief / Temporary Restraining Order” it includes a request for an accounting which is a cause of action. This “requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting.” *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179. Here, the Plaintiff has not plead facts that indicate the accounts are so complicated that other legal remedies are insufficient. FAC, ¶¶18-15; See *Civic Western Corp. v. Zila Industries Inc.* (1977) 66 Cal.App.3d 1, 14.

For this reason, the Demurrer as to this cause of action is SUSTAINED.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is GRANTED.
3. Moving party to submit proposed form of order.

^[1] Chapter X of Title 12 of the Code of Federal Regulations (CFR) includes section 1024.35 which imposes certain requirements and procedures relating to the resolution of asserted errors by a borrower regarding their mortgage loan account.

^[2] The statutory language of section 17200 establishes three distinct prongs of unfair competition; those that are unlawful, unfair, or fraudulent. See *Cal-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.

7. 9:00 AM CASE NUMBER: C25-03262
CASE NAME: JERRY BURNS, SR. VS. CFI GROUP LLC
***HEARING ON MOTION IN RE: LEAVE TO FILE THIRD AMENDED COMPLAINT**
FILED BY: BURNS, JERRY T, SR.
TENTATIVE RULING:

The unopposed motion is GRANTED. The moving party to prepare the order.

8. 9:00 AM CASE NUMBER: C25-03390
CASE NAME: CAROLINA DE ANDA VS. COUNTY OF CONTRA COSTA,
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY: COUNTY OF CONTRA COSTA,
TENTATIVE RULING:

Contra Costa County ("County") moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 with respect to the complaint filed by plaintiff, Carolina De Anda. The motion is **GRANTED**. Plaintiff has leave to amend as to the ninth through eleventh causes of action. As to the other causes of action, the motion is granted without leave to amend, as discussed below. If plaintiff contests this tentative ruling, counsel shall appear at the hearing prepared to discuss specific facts that she would add to an amended pleading that would change the results herein. Any amended complaint shall be filed and served on or before July 9, 2026.

I. Background

Plaintiff began working for the County on October 17, 2023 at A3 Miles Hall Crisis Center. (Complaint, ¶18.) Upon beginning employment, plaintiff informed the program manager, Debbie Thomas, that she had ADHD and anxiety. (*Ibid.*) Several months later, in May 2024, plaintiff received a crisis call and, upon receiving an address from the caller about where to go, she conveyed to the field team. (*Id.* at ¶19.) Later that day, Thomas accused plaintiff of providing the wrong address and jeopardizing the field team's safety, questioning plaintiff's fitness for her position due to her mental health disability and suggesting plaintiff find another position. (*Ibid.*)

Soon thereafter, plaintiff sought "accommodation" for her mental health disability via email to HR. (Complaint, ¶20.) In response, plaintiff received an FMLA form, but she clarified that what she needed was not time off, but an "accommodation for her disability." (*Ibid.*) Plaintiff was requested to provide a doctor's note. (*Ibid.*) When plaintiff's psychiatrist asked for more information regarding specific job duties and performance concerns, plaintiff told Thomas about the need, but because Thomas was out on a three-week vacation, the request could not be immediately met. (*Id.* at ¶21.) When Thomas returned, plaintiff met with her to request the information needed by the doctor, but Thomas said that specific feedback could not be given regarding plaintiff's performance. (*Id.* at ¶22.)

Around May 31, 2024, plaintiff's work partner was physically assaulted by a client during a field visit. (Complaint, at ¶23.) While Thomas assisted the work partner and debriefed the incident with her, she declined to meet with plaintiff, telling plaintiff she was too tired. (*Ibid.*)

On or about June 2nd, per Thomas's instructions, plaintiff was removed from crisis phone calls and was not allowed to go into the field for client interactions. (Complaint, ¶24.) A couple of weeks later, on June 18th, plaintiff requested clarity regarding her performance in order to further her disability accommodation request. (*Id.* at ¶25.) Plaintiff also complained about the lack of feedback, which inhibited her ability to obtain a doctor's note for accommodations, but Thomas did not respond to these concerns. (*Ibid.*)

Approximately one month later, on July 2nd, plaintiff again requested information to further her request for accommodations, and Thomas responded by saying there were concerns about plaintiff's work performance, without giving specifics. (Complaint, ¶26.) Plaintiff asked for clarification, and Thomas said they could talk about it later, but instead, four hours later, Thomas